



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12719
(FIRST REVISION)

JUL 9 2003

EXPIRATION DATE: August 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. **GRANTEE:** Bechtel Jacobs Company, LLC
Oak Ridge, TN
2. **PURPOSE AND LIMITATION:**
 - a. This exemption authorizes the one-time, one-way transportation in commerce of solidified sodium metal in certain non-DOT specification non-bulk and bulk packages. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR §§ 173.211 and 173.244 in that a non-DOT specification package is not authorized except as specified herein.
5. **BASIS:** This exemption is based on the application of Bechtel Jacobs Company, LLC dated June 24, 2003, submitted in accordance with § 107.109.
6. **HAZARDOUS MATERIALS (49 CFR § 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

JUL 9 2003

a. PACKAGING - Packagings prescribed are forty-five (45) non-DOT specification non-bulk and bulk packages fabricated from aluminum with nominal wall thicknesses of approximately one-half inch. Only packages with Sodium ID numbers listed in the exemption application on file with the Office of Hazardous Materials Exemptions and Approvals may be transported under the terms of this exemption.

b. OPERATIONAL CONTROLS -

(1) Transportation is only authorized between Bechtel Jacobs, Oak Ridge, TN and Waste Control Specialists, Andrews, Texas.

(2) Shipment must be made by contract carrier under the exclusive use of Bechtel Jacobs.

(3) Non-bulk packages must be placed in either a twenty or forty foot freight container for shipment.

(4) Bulk packages must be transported on a drop deck trailer and covered with a waterproof tarp for shipment.

(5) All packages must be securely blocked and braced during transportation in conformance with the requirements of §§ 393.100 - 393.106.

(6) All shipments must be tracked via satellite while in transit.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

b. Each non-DOT specification packaging must be marked "DOT-E 12719" as specified in §§ 172.301(c) or 172.301(b) and (c) as appropriate.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

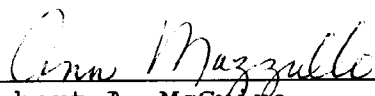
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

for 
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUL 9 2003

(DATE)

JUL 9 2003

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DBURGER/sln